HANDA MUGANDWINI
versus
KHAYELIHLE PROPERTIES (PRIVATE) LIMITED
and
DUMISANI CHITONGA

HIGH COURT OF ZIMBABWE
MOYO & DUBE-BANDA JJ
BULAWAYO; 27 May 2024 & 31 January 2025

Civil appeal

G. Jakuosi for the appellant
M. Ncube for the respondent

DUBE-BANDA J:

[1] This is an appeal against the whole judgment of the Magistrates' Court sitting in Victoria Falls, upholding the first respondent's ("Khayelihle Properties (Private) Limited") claim for eviction against the appellant, Mugandwini. Before the court *a quo,* the second respondent- Chitonga neither defended the action seeking the eviction of the appellant, nor participated in this appeal.

[2] For convenience and ease of reference, and where the context permits, the parties shall be referred to as per their designations in this court or by their names.

PROCEEDINGS BEFORE THE COURT A QUO

[3] Khayelihle Properties caused to be issued out a summons against Mugandwini and Chitonga seeking the eviction of Mugandwini from stand number 1247 Chinotimba, Victoria Falls ("stand") and holding over damages. The basis of the claim was alleged to be that on 29 March 2021, the Municipality of Victoria Falls ("Municipality") sold the stand to Chitonga. In turn on 24 July 2021 Chitonga ceded his rights in the stand to Khayelihle Properties, which became the owner of the stand. Khayelihle Properties averred that Mugandwini was in unlawful occupation of the stand, and that it was entitled to recover it from him. Khayelihle Properties further sought holdover damages from Mugandwini. Mugandwini defended the action, and Chitonga did not defend.

[4] In his plea Mugandwini averred that Chitonga had a lease agreement with the Municipality in respect of the stand, which was state land. He had personal rights to the stand. It was stated that in 2018 Chitonga and Mugandwini entered in an agreement in respect of the stand, and the existence of the agreement was confirmed by an order of the court. In addition, Mugandwini averred that that he was a victim of a double sale of the stand, and that he was in lawful occupation of the stand. The claim for holdover damages was also disputed.

[5] Khayelihle Properties filed a replication, in which it disputed and traversed Mugandwini's defence to the claim of eviction. It was averred that there was no valid sale between Chitonga and Mugandwini because at that time, the stand was state land and it could not be sold.

[6] At the pre-trial conference, the issues for trial were identified to be the following:

i. Whether Chitonga ceded his right in stand 1247 Chinotimba, Victoria Falls to the plaintiff.
ii. Whether or not Khayelihle Properties has a right to evict Mugandwini from stand 1247 Chinotimba, Victoria Falls.
iii. Whether or not Mugandwini is in unlawful occupation of stand number 1247 Chinotimba, Victoria Falls.

[7] The court *a quo* heard evidence and found that on 29 March 2021 the Municipality sold the property to the second respondent, Chitonga. That Chitonga acquired the rights, title and interests in the property on 29 March 2021, and not before this date. That on 24 July 2021 Chitonga ceded his rights, title and interest in the property to the Khayelihle Properties and the parties executed a deed of cession and assignment. When Khayelihle tried to take occupation, it found Mugandwini in occupation claiming ownership of the property having acquired it from Chitonga in October 2018.

[8] In addition, the court *a quo* found that in October 2018 the property was owned by the Municipality, and not Chitonga. That at the time Chitonga purported to sell the property to Mugandwini he had a right to do so, because he could not pass a right he did not have. Chitonga acquired rights, title and interest in the property on 29 march 2021, and in turn on 24 July 2021 he lawfully ceded his rights and title in the property to the Khayelihle Properties. The court ruled that the issue of double sale does not arise. The court stated that a cession holder in the position of Khayelihle Properties was at law permitted to evict a person from the property it holds rights, title and interest.

[9] The court *a quo* dismissed the argument that the matter concerning the property was *res judicata.* This argument arose from the fact Mugandwini previously sued Chitonga at the Magistrates Court in case number GL61/21and obtained an order that there was an agreement of sale between the two parties. Notwithstanding, the court *a quo* held that the ruling in GL61/21 was not binding on Khayelihle Properties because it was not a party to that matter. In addition, it held that the cause of action in GL61/21 was different from the cause of action in this matter. In the result, the court *a quo* ordered the ejectment of Mugandwini, his agents, invitees and anyone claiming the right of occupation through him, together with their goods, possessions and chattels from the property. He was ordered to pay the costs of suit.

[10] Aggrieved by the above findings, Mugandwini noted an appeal to this court, anchoring the appeal on the following grounds:

Grounds of appeal

i. The court *a quo* erred in finding that the plaintiff could evict the first defendant on the basis of personal rights over the property.

ii. The court a court erred in finding that the appellant was in unlawful occupation of the property.

iii. The court *a quo* erred in finding that the agreement of sale between the appellant and the second respondent was valid.

iv. Consequently, the court *a quo* erred in ordering eviction of the appellant despite the above limitations.

Wherefore, the appellant prays for the following relief:

a. That the appeal succeeds with costs.

b. That the judgment of the Magistrate's Court be and is hereby set aside and substituted with the following:

"The Claim for eviction be and is hereby dismissed with costs."

PROCEEDINGS BEFORE THIS COURT

Submissions Before This Court

[11] The appellant argued that Khayelihle Properties had no cause of action against Mugandwini, in that a cession agreement transfers personal rights and is enforceable against parties to the agreement. The case of *Gandawa v Gopoza and Others* HH-221-21 is cited in support of this argument. It was submitted that in the court a quo Khayelihle Properties argued that it was seeking the eviction of Mugandwini on the

basis that it was the holder of a cession agreement. It was submitted further that on the principle of privity of contract, Mugandwini is not bound by the cession agreement between Khayelihle Properties and Chitonga. The argument goes like Mugandwini could not be compelled to vacate the property on the basis of an agreement to which he is not a party.

[12] It was argued further that Mugandwini has rights over the property on the basis of an agreement of sale between him and Chitonga. He made payments and Chitonga facilitated his occupation of the property. It was contended that the fact that Mugandwini was still to attain rights over the property did not vitiate the agreement between him and Chitonga. In addition, it was argued that in VF-GL-61-21 the court fully ventilated the issue whether there was an agreement between Mugandwini and Chitonga, and the court found that indeed there was an agreement. Therefore, it was submitted that the finding that Mugandwini was in unlawful occupation of the property was a serious misdirection that warrants interference by this court.

[13] *Per contra*, Khayelihle Properties argued that the agreement with Chitonga accorded it ownership, in that it acquired rights, title and interest in the stand. It was submitted that the agreement of cession and assignment entitled Khayelihle Properties to cause the eviction of Mugandwini from the stand. Therefore, it had a right to cause the eviction of any person who occupied the stand without its consent, or who had no enforceable right to occupy the stand. It was submitted that the Mugandwini neither had consent nor an enforceable right to occupy the stand. It was submitted further that a case for *rei vindicatio* was made and the decision of the court a quo could not be faulted.

[14] It was argued further that Mugandwini purportedly occupied the property on the basis of an invalid agreement of sale. In that at the time of the purported sale, the property could not at law be sold by Chitonga because it was owned by the Municipality. Khayelihle Properties sought that the appeal be dismissed with costs on an attorney and client scale.

ISSUES FOR DETERMINATION

[15] For completeness, I state that ground of appeal number 4 does not conform to the requirements of a valid ground of appeal. The grounds of appeal must be clearly and succinctly set out in clear and unambiguous terms to enable the court and the respondent to be fully informed of the case the appellant seeks to make out and which

the respondent is to meet. This is peremptory. In *casu,* ground 4 is meaningless, it does not state the findings of fact and of law appealed against. It is a nullity and does not exist. See *Thathile Investments Casmyn Mining* v *Ncube* SC 34/23; *Ndlovu & Anor* v *Ndlovu & Anor* SC 133/02; *Jensen v Acavalos* 1993 (1) ZLR 216 (S).

[16] It is clear that Khayelihle Properties anchored its case on the common law principle of *rei vindicatio.* Therefore, there is only one issue that commends itself for determination in this appeal, it is whether or not Khayelihle Properties proved a case under *rei vindicatio.*

THE LAW AND THE FACTS

[17] The *rei vindicatio* is premised on the notion that an owner may not be deprived of his or her property against his or her will, and is entitled to recover property from any person who retains possession of it without his or her consent. Therefore, no other person may withhold property from the owner unless he or she is vested with some right enforceable against the owner such as a right of retention against the owner or a contractual right. It is trite law that possession should also be lawful in order to be a valid defence against the *rei vindicatio*. See *Savanhu* v *Hwange Colliery Company* SC 8/15; *Goudini Chrome (Pty) Ltd* v *MCC Contracts (Pty) Ltd* 1993 (1) SA 77 (A) at 81-82.

[18] An owner who institutes the *rei vindicatio* is required to allege and prove that he or she is the owner of the thing; the thing was in the possession of the defendant at the commencement of the action; and the thing which is vindicated is still in existence and clearly identifiable. See *Unimark Distributors (Pty) Ltd* v *Erf 94 Silvertondale (Pty) Ltd* 1999 (2) SA 986 (T) at 995I-996D; *Chetty* v *Naidoo* 1974 (3) SA 13 (A) at 20C; *Vulcan Rubber Works (Pty) Ltd* v *South African Railways and Harbours* 1958 (3) SA 285 (A) at 297E; *Sorvaag* v *Pettersen and Others* 1954 (3) SA 636 (C) at 639G and 641B. The onus to establish any right to retain possession of the thing always rests on the defendant.

[19] In this matter occupation of the stand by Mugandwini is common cause. It is also not in dispute that the stand being sought to be vindicated is still in existence and clearly identifiable. The key question is whether Khayelihle Properties is the owner of the stand? On 29 March 2021 Chitonga and the Municipality signed a purchase/sale agreement for the 'Conversion of rented accommodation into homeownership.' The preamble to the agreement says 'whereas the Municipality own the land and a dwelling

and the purchaser is desirous of purchasing both the land and a dwelling on stand number 1247 Chinotimba Township of Victoria Falls Township lands.' On the strength of the agreement of sale Chitonga acquired rights, title and interest in the stand. On 24 July 2021 Chitonga and Khayelihle Properties executed a deed of cession and assignment in respect of the stand, wherein Chitonga ceded his rights, title and interest in the stand to the Khayelihle Properties. Therefore, Khayelihle Properties having acquired rights, title and interest it is owner of the stand. In the circumstances, the court *a quo* cannot be faulted for finding that the Khayelihle Properties is the owner of the stand.

[20] The appellant argued that Khayelihle Properties had no cause of action against him, in that a cession agreement transfers personal rights and is enforceable only against parties to the agreement. In addition, the appellant argued that he has rights over the property on the basis of an agreement of sale between him and Chitonga. These submissions require closer scrutiny. The fact that Khayelihle Properties has no deed of transfer to the property is inconsequential. It acquired the rights, title and interest on the stand by virtue of the agreement with Chitonga. See *Chenga* v *Chikadaya & Ors* SC 7-13. It therefore, became the owner of the stand.

[21] The appellant anchors his right of retention on the agreement of sale he signed with Chitonga in 2018. It is clear that in 2018 Chitonga was a tenant on the stand, he only purchased the stand on 24 July 2021. The agreement for the 'Conversion of rented accommodation into homeownership' puts this issue beyond dispute. In 2018 Chitonga had no right to sell the stand to Mugandwini or any third party. He was not the legitimate owner and could not transfer rights, title and interest he did not possess. Therefore, the purported sale of the stand to Mugandwini was a none event, a nullity at law. See *Chenga* v *Chikadaya & Ors* SC 7/13. The court *a quo* could not be faulted for finding that in 2018 Municipality owned the stand and Chitonga had no authority to sell it. In the circumstances, the agreement of sale between the appellant and Chitonga cannot anchor a right of retention, and neither can it support a contention of a double sale.

[22] The argument that in a matter between Mugandwini versus Chitonga the Magistrates Court ruled that the agreement between them was extant is of no consequence in this matter. I say so because a decision of a magistrate is not binding on another magistrate, it is only binding on the parties. In this matter, Khayelihle Properties was not party to that litigation between Mugandwini versus Chitonga GL61/21. See

Manning v *Manning* 1986(2) ZLR 1 (SC) & *Mkize* v *Swemmer & Anor* 1967 (1) SA 186 (D) at 197 C-D). In addition, the cause of action GL61/21 is different from the cause of action in this matter, in that this case a vindicatory claim as opposed to the claim in GL61/21.

[23] In light of the foregoing, this court finds that the appeal lacks merit. The court *a quo* cannot be faulted for ordering the eviction of the appellant from stand number 1247 Chinotimba, Victoria Falls. Accordingly, the appeal must fail.

COSTS

[24] The appellant has failed to obtain the relief he sought from this court. There are no special reasons warranting a departure from the general rule that costs should follow the result. The Khayelihle Properties is entitled to its costs. It sought costs on a legal practitioner and client scale. Such costs are not for the mere asking. Something more underlies the practising of awarding punitive costs, than the mere punishment of the losing party. See *Kangai* v *Netone Cellular (Pvt) Ltd* 2020 (1) ZLR 660 (H). No case has been made for punitive costs. Costs on a party and party scale will meet the justice of the case.

Accordingly, it is ordered as follows:

"The appeal be and is hereby dismissed with costs."

DUBE BANDA J: ……..

MOYO J: …… **Agrees**

Mvhiringi & Associates, appellant's legal practitioners
Ncube Attorneys, 1st respondent's legal practitioners